

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4   HOUSE BILL 3082

                              By: Kelley of the House

5                                               and

6                                               **Hines** of the Senate

7  
8                               AS INTRODUCED

9           An Act relating to firefighters; amending 57 O.S.  
10          2021, Section 589, which relates to the Sex Offenders  
11          Registration Act; prohibiting fire departments from  
12          employing previously convicted sex offenders;  
13          providing penalties; defining term; and providing an  
14          effective date.

15   BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16           SECTION 1.        AMENDATORY        57 O.S. 2021, Section 589, is  
17          amended to read as follows:

18           Section 589.   A.   It is unlawful for any person registered  
19          pursuant to the Oklahoma Sex Offenders Registration Act or the Mary  
20          Rippy Violent Crime Offenders Registration Act to work with or  
21          provide services to children or to work on school premises, or for  
22          any person or business which contracts for work to be performed on  
23          school premises to knowingly and willfully allow any employee to  
24          work with children or to work on school premises who is registered  
                pursuant to the Oklahoma Sex Offenders Registration Act or the Mary

1 Rippy Violent Crime Offenders Registration Act. Upon conviction for  
2 any violation of the provisions of this subsection, the violator  
3 shall be guilty of a misdemeanor punishable by a fine not to exceed  
4 One Thousand Dollars (\$1,000.00). In addition, the violator may be  
5 liable for civil damages.

6 B. 1. A person or business who offers or provides services to  
7 children shall ensure compliance with subsection A of this section  
8 by conducting a name search of employees at least annually against  
9 the registries maintained pursuant to the Oklahoma Sex Offenders  
10 Registration Act and the Mary Rippy Violent Crime Offenders  
11 Registration Act while such person is working with or serving  
12 children. All persons working with or providing services to  
13 children shall be required to sign a statement declaring that he or  
14 she is not currently required to register under the provisions of  
15 the Oklahoma Sex Offenders Registration Act or the Mary Rippy  
16 Violent Crime Offenders Registration Act. Compliance with the  
17 signed statement shall be mandatory for all persons working with or  
18 providing services to children, and there shall be no liability or  
19 obligation placed upon any person or business to ascertain the  
20 truthfulness of the affidavit. Any person or business having a  
21 contract with a school shall ensure compliance as provided by  
22 Section 6-101.48 of Title 70 of the Oklahoma Statutes.

23 2. Failure of any person or business who works with or provides  
24 services to children to conduct the annual name search of each

1 person employed shall be a misdemeanor. Upon conviction for failure  
2 to conduct a name search, the violator shall be guilty of a  
3 misdemeanor punishable by a fine not to exceed One Thousand Dollars  
4 (\$1,000.00). Refusal of any person who is employed to work with or  
5 provide services to children to sign a statement declaring they have  
6 no requirement to register as provided in this section shall be a  
7 misdemeanor, upon conviction, punishable by a fine not to exceed One  
8 Thousand Dollars (\$1,000.00), and the person shall be immediately  
9 terminated from employment. Any person discovering an employment or  
10 registration violation as required by any provision of law for any  
11 person currently employed to work with or provide services to  
12 children has a duty to and shall immediately report such findings to  
13 the district attorney.

14 C. It is unlawful for any law enforcement agency to employ any  
15 person as a peace officer or criminal investigator who has received  
16 a verdict of guilty or pled guilty or nolo contendere to any offense  
17 required to register pursuant to the Sex Offenders Registration Act  
18 or the Mary Rippy Violent Crime Offenders Registration Act,  
19 including those receiving a verdict of guilt, pleading guilty or  
20 nolo contendere as part of a deferred judgment or other provision of  
21 law authorizing a delayed or suspended judgment or sentence. Every  
22 person receiving a verdict of guilty or pleading guilty or nolo  
23 contendere to any offense required to register pursuant to the Sex  
24 Offenders Registration Act or the Mary Rippy Violent Crime Offenders

1 Registration Act shall be prohibited from being certified by the  
2 Council on Law Enforcement Education and Training (CLEET) as a peace  
3 officer, private investigator, or security guard, and if at the time  
4 of the verdict or plea such person has been previously CLEET  
5 certified such certification shall be revoked. Any violator shall  
6 be guilty of a misdemeanor upon conviction of noncompliance with the  
7 provisions of this subsection.

8 D. 1. It is unlawful for any fire department in this state to  
9 employ any person as a firefighter who has received a verdict of  
10 guilty or pled guilty or nolo contendere to any offense required to  
11 register pursuant to the Sex Offenders Registration Act, including  
12 those receiving a verdict of guilt, pleading guilty or nolo  
13 contendere as part of a deferred judgment or other provision of law  
14 authorizing a delayed or suspended judgment or sentence. Any person  
15 who violates the provisions of this subsection shall, upon  
16 conviction, be guilty of a misdemeanor.

17 2. As used in this subsection, "firefighter" means a volunteer  
18 firefighter or a permanent salaried professional member of any fire  
19 department within the State of Oklahoma.

20 SECTION 2. This act shall become effective November 1, 2026.  
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22 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY AND PUBLIC SAFETY  
23 OVERSIGHT, dated 02/24/2026 - DO PASS, As Coauthored.  
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